

Joan I to the *portantveus de governador* and *sobrejunteros* of Aragon, on the *bandos* of the Jaca highlands

Barcelona, 28 May 1387

Document Summary

Archive / register	Arxiu de la Corona d'Aragó, Cancillería, register [to be supplied], f. 75r
Date	28 May 1387 (Barcelona)
Issuer	Joan I of Aragon
Addressees	The <i>portantveus de Governador</i> of the kingdom of Aragon; the <i>sobrejunteros</i> of Jaca, Huesca, Sobrarbe, and Las Vallas; and any other royal officials and subjects in those districts
Language	Aragonese
Hand	Gothic Secretarial (fourteenth-century chancery cursive)
Type	Royal reprimand and mandate (<i>lletra de reprensió</i> with dispositive clause); <i>littera clausa</i>
Authentication	<i>Sello secreto</i>
Scribal subscription	<i>Dominicus Mascho</i>
Subject	Reprimand of the addressees for failure to suppress the <i>bandos</i> in the mountains of Jaca; alarm at the parties' efforts to introduce <i>companyas estrangias</i> into the kingdom; grant of <i>plenero poder e entegrament nuestras vezes</i> to put the <i>bandos</i> into final peace or truce, or to pursue them out of the kingdom, with civil and corporal penalties; warning that those who aid the <i>bandos</i> will be treated as principals

Reconciled Transcription

Don Johan, por la g[raci]a de Dios Rey d'Aragon, de Valencia, de Mallorquas, de Cerdenya e

de Corcega, et Comte de Barchinona, de Rossellon et de Cerdanya. Alos amados e fieles n[uest]ros el portantvezes de Governador en el regno d'Aragon, sobrejunteros de Jacca, de Huesca, de Sobrarbe e d[e]las Valles, e aqualesquier otros oficiales e subditos n[uest]ros alos quales la pre-/sent p[er]vendra, salut e dilecc[i]on.

Entendemos[?] con grant desplacer de n[uest]ro corazon que por occasion d[e]los bandos d[e]las monta[n]yas de Jacca todas aq[ue]llas comarchas se destruyen e andan en muy grant desolamie[n]to e p[er]dicion, e se son ya seguidos no solament en las p[ar]tes, mas aun contra otras p[er]sonas grandes scandalos e muytos da[m]nos e males. Et por crecer aq[ue]llos fazen las ditas p[ar]tes su esfuerço de meter compa[n]yas estra[n]gias en el dito regno, la qual cosa tenemos a ta[n] fuert iniuria e ofensa que, si a Dios plaziesse e [?] podiessemos [iustament?] cavalgar, nos po[r]niamos en camino p[er]sonalment, ende fariamos tal castigo q[ue] malos e buenos lo havrian en memoria pora siempre.

E somos maravillados e agraviados muyto ademas como vosotros, sabiendo la necessitat de n[uest]ra p[er]sona e aqui nos detener[?], e oyendo tales e tan malas novedades fazer en aq[ue]llas p[ar]tes d[e]las quales hauedes carga e poder, puestos en aq[ue]llas en voz e lugar n[uest]ro, que somos v[uest]ro Rey e natural senyor, no li ponedes aq[ue]ll remedio q[ue] conviene; antes, como ciegos, dissimulades estas cosas assi odiosas e de mal exemplo, e las hauedes por no nada, de q[ue] sodes todos g[e]neralment e p[ar]ticular[ment] en grant culpa e dignos de fuert pena. E dades nos a conoscer que alla do vosotros sodes, ha hombre de poco recaudo e poco preziente n[uest]ra honrra e [bono?] [?], e menos el bien publico del dito regno.

Porque, reprendiendovos fuertm[en]t de aq[ue]sto e no sin multiplicadas razones, a vos otros e a cad[a]uno de vos otros dezimos e mandamos, req[ue]rimos e amonestamos q[ua]nto mas expressam[en]t podemos, por la fe[?] e naturaleza q[ue] nos sodes tenidos, q[ue] assi con las huestes d[e]las ditas p[ar]tes como en otra manera vayades fuertm[en]t e poderosam[en]t alla do sab[r]edes q[ue] sean los ditos bandos, e contra aq[ue]llos q[ue] aq[ue]llos siguieren e [querrian?], e[?] [prendimientos?] e [captamientos?] siquier civiles siquier corporales q[ue] se pongan absolutam[en]t en paz final o en tregua de algun luengo e conviniente tiempo, o los persiguades tan poderosam[en]t e rigorosa[ment] q[ue] no ose ninguno pec[ar?] en n[uest]ra senyoria, como [?] tenemos[?] ellos[?] por[?] [su miedo corporal?] o [forçamiento?] de n[uest]ros regnos, q[ue] no posen aq[ue]lla tierra ni sostengan los da[m]nos e menoscabos sobreditos o otros q[ue] por sus malas culpas pueden contecer.

E sobre aq[ue]sto no favorecedes ni p[ro]veedes a ninguno, si non queredes condempnar vos otros mismos; como nos con la present vos damos e mandamos en e sobre las ditas cosas e q[ua]lq[ui]er d[e]llas, e otras d'aqui dependientes, incidentes e em[er]gentes, plen[er]o poder e entegrament n[uest]ras vezes. E todos aq[ue]llos que en esto vos daran consello, favor e ayuda, o [se?] fallaran en alguna manera, conoscan, e vos otros conosc[r]edes, q[ue] nos faran e faredes de aq[ue]sto muy grant plazer e asenyalado servicio. Et por el contrario dariades nos a sentir q[ue] poco amades n[uest]ra honrra e el buen stam[ien]to del dito regno, e que sodes principales e fautores de todos los ditos males, la qual cosa no presumimos

de vos otros, en qui siempre fallemos verdadera lealdat e naturaleza, e [?] coraçones
[aparellados?] a n[uest]ros mandamientos e plazerres.

Dada en Barchinona, a xxviiij dias de mayo, en el anyo d[e] la nat[ivi]dat de n[uest]ro Senyor
mil CCC LXXX siete. De n[uest]ro sello secreto. — *Dominicus Mascho*

Translation

Don Joan, by the grace of God King of Aragon, of Valencia, of Mallorca, of Sardinia and of Corsica, and Count of Barcelona, of Roussillon and of Cerdagne. To our beloved and faithful, the *portantveus de Governador*¹ in the kingdom of Aragon, the *sobrejunteros*² of Jaca, Huesca, Sobrarbe and Las Vallas,³ and to any other officials and subjects of ours to whom the present [letter] shall come, greeting and affection.

We understand,⁴ with great displeasure of our heart, that, on occasion of the *bandos*⁵ of the mountains of Jaca, all those districts are being destroyed and are in very great desolation and ruin, and there have already followed, not only among the parties [themselves], but also against other persons, great scandals and many damages and evils. And to multiply those, the said parties are making their effort to introduce foreign companies⁶ into the said kingdom — which thing we hold to be so grievous an injury and offense that, if it pleased God and [if] we could[?] ride forth justly,⁷ we would set out in person, and there we would inflict such punishment that bad and good [men] alike would remember it forever.

And we are exceedingly amazed and aggrieved, moreover, that you — knowing the necessity of our person and that we must remain[?] here, and hearing such and so wicked tidings being done in those parts of which you have charge and power, having been placed there in our voice and place,⁸ [we] who are your King and natural lord — do not apply that remedy which befits the matter; rather, like blind men, you dissemble these things, so hateful and of evil example, and hold them as nothing — wherefore you are all, generally and individually, in great fault and worthy of severe punishment. And you give us to understand that there where you are, there is a man of little discretion, little prizing our honor and our [good name?],⁹ and still less the public good of the said kingdom.

Wherefore, strongly reproving you for this, and not without manifold reasons, to you all and to each of you we say and command, require and admonish, as expressly as we are able, by the fidelity[?] and *naturaleza*¹⁰ by which you are bound to us: that, both with the hosts of the said parties¹¹ and in any other manner, you shall go strongly and powerfully thither where you shall know the said *bandos* to be, and against those who shall follow them and [would do so?]; and [that, by arrests?]¹² and [seizures?], whether civil or corporal, they shall put themselves absolutely into final peace, or into a truce of some long and suitable term; or [that] you pursue them so powerfully and rigorously that no man dare to transgress in our lordship; so that [...] we may hold them[?] by [bodily fear?] or by the forcing [of them out?] of our kingdoms,¹³ [that

they] inhabit not that land, nor sustain the aforesaid damages and harms, nor others that, through their evil faults, may come to pass.

And on this matter you shall not favor nor furnish provision to any [of them], unless you wish to condemn yourselves; for we, by the present, give and command to you, in and concerning the said matters and any of them, and others dependent, incident, and emergent therefrom, plenary power and entirely our vices.¹⁴ And all those who in this shall give you counsel, favor and aid, or shall be found [acting] in any manner [in support of you], let them know — and you yourselves shall know — that they will do to us, and you will do, in this very great pleasure and signal service. And, on the contrary, you would give us to feel that you little love our honor and the good estate of the said kingdom, and that you are principals and abettors of all the said evils — a thing we do not presume of you, in whom we have always found true loyalty and *naturaleza*, and [whose?] hearts [are ready?] for our commands and pleasures.

Given at Barcelona, the 28th day of May, in the year of the Nativity of Our Lord 1387.¹⁵ Under our secret seal.¹⁶ — *Dominicus Mascho*¹⁷

Footnotes

Unresolved Ambiguities

The following passages remain insecure at the close of Stage 2 reconciliation and should be checked against the original at the ACA:

1. **Opening verb of the *narratio*** (line 4). *Entendemos* (present, my reading) vs. *Entendimos* (preterite, HTR). I have preferred *Entendemos* on formulaic grounds but the manuscript should settle it.
2. **The conditional clause on the king's intervention** (line 8). The reading between *podiessemos* and *cavalgar* is not fully recoverable from the image; an adverbial (*iustament?*) is rhetorically plausible but not confirmed. The HTR's *sey que* is gibberish and should be set aside.
3. **The clause on the king's necessary presence at court** (line 10): *e aqui nos detener[?]*. The construction does not parse cleanly in either witness; the sense is "[knowing that] our person must remain here," but the surface form needs verification.
4. **The damaged noun in the line on the *hombre de poco recaudo*** (line 14). A noun in the series *honrra* — [?] — *bien publico* is required; both witnesses give an apparent nonword (*huino* / *buno*). Probably *bono* or a near variant.
5. **The penal-instrument doublet** (lines 18–19). *Prendimientos e captamientos?* *Castigamientos?* The pair governs the formula *siquier civiles siquier corporales* but the lexical reading is not yet secure in either witness.

6. **The coercion-and-expulsion clause** (lines 20–21). The most damaged stretch on the folio. Neither witness yields intelligible Aragonese; *muger corporal* (HTR) is certainly wrong, and my reading is no better. The functional sense (bodily coercion or expulsion from the realm) is clear from context.
 7. **The closing formula on the addressees' *naturaleza* and obedient hearts** (final clause of the *dispositio*). The phrasing *e [?] coraçones [aparellados?] a nuestros mandamientos e plazer* is partly reconstructed from formulaic parallels; the surface text needs checking.
 8. **Prosopography of *Dominicus Mascho***. The subscription is now confirmed but the man himself is unidentified in the working corpus; worth a focused search through the chancery personnel records of 1387.
1. The *portantveus de Governador* was the operative chief representative of royal authority in the kingdom of Aragon, exercising the powers of the Governor-General in the latter's absence. Under Joan I's early reign, the office of Governor-General of Aragon was held by his brother the Infante Martí (the future Martí I); the *portantveus* discharged the substantive duties. ↵
 2. *Sobrejunteros* were the principal royal territorial officers within the kingdom of Aragon, presiding over the *sobrejunterías* — the major regional subdivisions of the kingdom. Their competence covered public order, pursuit of *malfechores*, and execution of royal mandates. The institution is the Aragonese functional analogue of the Catalan *veguer*, though with a markedly more police-oriented profile. ↵
 3. The four *sobrejunterías* named here — Jaca, Huesca, Sobrarbe, and Las Vallas — constitute, taken together, the entire western and central Pyrenean frontier of the kingdom. The grouping is not random: it traces precisely the zone through which the *companyas estrangias* of n. 6 would be expected to enter the realm from Gascony and Béarn. "Las Vallas" denotes the Pyrenean valleys (Hecho, Ansó, Tena, and the others) administered collectively as a single *sobrejuntería*. ↵
 4. I retain *Entendemos* (present indicative) as the surface reading; the HTR's *Entendimos* (preterite) is possible but would be unusual at the opening of a chancery *narratio*, where present-tense formulae predominate (*Entendemos / Sapiades que*). ↵
 5. *Bandos*: factional groupings, typically organized around noble or knightly lineages and their clienteles, engaged in escalating cycles of violence with another such grouping. The phenomenon was endemic to late medieval Aragon, particularly in the mountainous north, and a recurrent occasion for direct royal intervention. The *Paz e Tregua* mechanism inherited from the Aragonese *fueros* was the standard legal framework for their suppression, but, as this document makes plain, royal officers were frequently slow to invoke it. ↵
 6. *Companyas estrangias*: foreign mercenary companies. In 1387 the threat envisaged would have been concrete and immediate. The 1360s and 1370s had seen the *Grandes Compagnies* repeatedly descend from France through the western Pyrenees, most

notoriously in 1366 under Du Guesclin in the service of Enrique de Trastámara. The prospect that *bandos* within Aragon would now contract such companies on their own account — turning a factional dispute into a foreign incursion — explains the unusual sharpness of Joan I's response. The wording *meter companyas estrangias en el dito regno* presents the *bandos* not merely as disturbers of the peace but as quasi-treasonous importers of external force. ↵

7. A genuinely uncertain passage. The HTR proposes an extra clause (*sey que podiessemos asi justament cavalgar*) where I had read only *podiessemos cavalgar*; on returning to the image there is more ink than my Stage 1 reading accommodated, and an adverbial *justament* is rhetorically plausible (the king must ride out *justly* to punish), but the surface reading remains insecure. I have rendered the intuition conservatively. ↵
8. *En voz e lugar nuestro*: the standard formula of plenipotentiary delegation in Aragonese chancery practice — the addressees stand in the king's "voice and place." Coupled here with the appositive *que somos vuestro Rey e natural senyor*, the formula does explicit theoretical work: the reprimand is not against subordinates who have failed their duties to an absent superior, but against figures who, by holding royal authority *in voz e lugar*, share in the dignity (and thus the dishonor) of the king himself. The grievance is therefore framed as a failure not of administrative diligence but of representational integrity. ↵
9. I cannot read the noun in this position with confidence; HTR sees *huino*, I see *buno*, and neither is a word. The syntax demands a noun in the same series as *honrra* and *bien publico del regno*, i.e. a positive value being neglected. Possibilities include *bono* (= *bueno*, "good [name]") or some related substantive. The sense is secure even where the lexical item is not. ↵
10. *Naturaleza*: not "nature" in the modern abstract sense but the specifically political-juridical bond of natural allegiance between the *natural senyor* and his *naturals*, distinct in late medieval Aragonese-Catalan thought from purely contractual or sworn fidelity. It is the *naturaleza* of the addressees that the king invokes here as ground for the mandate — and that he twice praises at the close, signalling that the reprimand is being delivered within, not against, the bond. ↵
11. *Con las huestes de las ditas partes*: i.e. with the levies and contingents proper to the *sobrejunterías* themselves, raised under the authority of the addressees as royal officers. The HTR's reading *con las vuestres o las ditas juramentos* is a double error — misreading *huestes* as *vuestres* and resolving an abbreviation into *juramentos* — and obscures what is in fact a crucial operational instruction: the *sobrejunteros* are to deploy their own armed retinues against the *bandos*. ↵
12. A particularly difficult passage in both witnesses. The structural sense is intelligible — a doublet of penal instruments, *siquier civiles siquier corporales*, by which the *bandos* are to be coerced into peace or truce — but neither my reading nor the HTR's yields a confident lexical form for the two nouns. Plausible candidates include *prendimientos* (arrests) and

captamientos / *captimientos* (seizures), or a paired construction in *castigamientos*; the passage is dense and would benefit from direct manuscript consultation. ↵

13. This stretch (lines 20–21 of the HTR) is corrupt in both witnesses and I have not been able to recover it satisfactorily. The HTR's *como amellos tenemos ellos por su muger corporal* yields no sense; my reading offers no improvement. The general drift required by context is that the *bandos* are to be coerced — by bodily punishment, or by forcible expulsion from the realm — so that they cease to inhabit the affected territory; but the precise wording is not yet established. I have rendered the sense in cautious paraphrase and flagged the passage in the unresolved ambiguities below. ↵
14. *Plenero poder e entegrament nuestras vezes*: standard plenipotentiary clause. *Nuestras vezes* (lit. "our turns/stints") is the canonical Aragonese-Catalan formula for the delegation of royal jurisdictional authority; *entegrament* (entirely / integrally) is intensifying. Together with the *en voz e lugar nuestro* of the *narratio*, this clause grants the addressees the king's full jurisdictional reach over the matter, including over questions *dependientes*, *incidentes* e *emergentes* — the standard chancery triad covering, respectively, matters arising directly from, alongside, and consequent upon the principal cause. ↵
15. The dating clause is *anno a Nativitate Domini*, the standard Aragonese chancery style. 28 May 1387 falls within the first calendar year of Joan I's reign (he had acceded on 5 January 1387 upon the death of Pere III), and the document is among the earliest in which the new king's reaction to a long-standing structural problem of his father's reign — the Aragonese *bandos* — can be observed. ↵
16. *De nuestro sello secreto*: the document was authenticated with the royal *sello secreto* (the *petit anell* / *secretum*), as was standard for *letras closas* of this kind, as opposed to the *sigillum maius* used on more solemn instruments. ↵
17. *Dominicus Mascho* — the scribal *iussio* / subscription. The form (single name, Latinized given name, vernacular surname) is typical of chancery clerks of this period. Identification of the figure within Joan I's chancery personnel — and confirmation of whether the *Mascho* spelling is consistent across other documents of spring 1387 — is a useful piece of follow-up; the surname is uncommon and ought to be traceable. ↵